DATED 8 JULY 2019

THE COUNCIL OF THE CITY OF SALFORD

– and –

BRADLEY MANOR LIMITED

- and -

DYRHAM PARK LIMITED

AGREEMENT

pursuant to section 106 of the Town and Country Planning Act 1990 relating to land at 28 King Street and 49 - 51 Queen Street, Blackfriars, Salford

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City Solicitor
Salford City Council
P O Box 532
Town Hall
Albert Square
Manchester M60 2LA
Ref FYM/OUT1105/600

THIS AGREEMENT is made the 8th day of July 2019

BETWEEN:

(1) **THE COUNCIL OF THE CITY OF SALFORD** of Salford Civic Centre, Chorley Road, Swinton, Manchester M27 5DA (**"the Council"**)

(2) **BRADLEY MANOR LIMITED** (incorporated in England with company number 09712329) whose registered office is at 40 King Street, Manchester, M2 6BA (**"the First Owner"**)

(3) **DYRHAM PARK LIMITED** (incorporated in England with company number 10213702) whose registered office is at 40 King Street, Manchester, M2 6BA (**"the Second Owner"**)

BACKGROUND

A The Council is the local planning authority for the purposes of the Act in relation to the Site and is the authority by whom the obligations hereby created are enforceable The Development will be carried out on the Site The Site is situated within the Administrative Boundaries of Salford and this planning obligation is enforceable by the Council

B The First Owner is the freehold owner of that part of the Site registered at the Land Registry with Title Absolute under Title Number GM315075 together with but subject to all matters contained or referred to in the Property Register and Charges Register thereunder

C The Second Owner is the freehold owner of that part of the Site registered at the Land Registry with Title Absolute under Title Number GM787675 together with but subject to all matters contained or referred to in the Property Register and Charges Register thereunder

D The Application was submitted to the Council for planning permission to carry out the Development in the manner set out in the plans, specifications and particulars forming part of the Application

E The Council as local planning authority is satisfied that the Development is such as may be approved by the Council under the Act and is minded to grant planning permission for the Development in accordance with the Application but having considered the SPD and the Regulations is desirous of the parties entering into this Agreement without which planning permission would not be granted

F The parties have agreed to enter into this Agreement so as to create planning obligations in favour of the Council pursuant to section 106 of the Act and to be bound by and observe and perform the covenants hereinafter contained

G The planning purpose of this Agreement is to mitigate the adverse impacts of the Development in accordance with the UDP and other material considerations The Council is satisfied that the obligations in this Agreement are,

(a) necessary to make the Development acceptable in planning terms (including where appropriate, obligations necessary to mitigate the adverse impacts of the Development in accordance with the UDP and other material considerations),

(b) directly related to the Development, and

(c) fairly and reasonably related in scale and kind to the Development

AGREED TERMS

1. DEFINITIONS AND INTERPRETATION

1 1 The definitions and rules of interpretation set out in this Clause apply to this Agreement

"Act" the Town and Country Planning Act 1990 as amended

"Administrative Boundaries of Salford" all the wards that together comprise the city of Salford

"Agreement" means this agreement

"Application" the application to which the Council gave the reference 18/72242/FUL for planning permission for the demolition of existing and former light industrial building / commercial units and construction of a residential led mixed use development ranging from 7 – 14 storeys and comprising 104 apartments (Use Class C3) and ancillary communal and amenity spaces, a commercial unit (A1, A2, A3, B1, D1) and bicycle store

"Commencement of Development" the date upon which the Development shall begin by the carrying out of a material operation in accordance with the provisions of section 56(4) of the Act PROVIDED THAT any works of or associated with site clearance, demolition works, remediation works, environmental or archaeological investigations, site and soil surveys, erections of contractors work compound, erection of site office, erection of fencing to site boundaries, marking of site boundaries and laying out of access roads and services shall for the purposes of the agreement be deemed not to be material operations and **"Commence"**, **"Commencement"** and **"Commenced"** shall be construed accordingly

"Contributions" the Public Realm Contribution and the Transport Contribution together being the sum of £474,700 00 (four hundred and seventy four thousand seven hundred pounds) Index Linked

"Development" the development undertaken on the Site pursuant to the Planning Permission

"Director" the Council's Strategic Director of Environment and Community Safety or such other officer of the Council as may from time to time be nominated in writing to act in place of the Council's Strategic Director of Environment and Community Safety

"Expert" a professional expert in town planning, who is a Chartered Member of the Royal Town Planning Institute with a minimum of ten (10) years post-qualification experience

"Index Linked" adjusted on an annual basis or pro rata per diem from the date of completion of this Agreement to the relevant date of payment in accordance with the Retail Price Index and "Index Linking" shall be construed accordingly

"Interest" interest at 4% (four per cent) above the base lending rate of the Bank of England from time to time

"Occupation" means occupation of any part of the Development for the purposes permitted by the Planning Permission but does not include use by personnel whilst engaged in construction, fitting out or decoration of the Dwellings or occupation for marketing or display or occupation in relation to security operations and "Occupy", "Occupying" and "Occupied" shall be construed accordingly

"Owners" together the First Owner and the Second Owner

"Plan" the plan attached to the agreement at Schedule 1 showing the Site edged red

"Planning Permission" the planning permission granted pursuant to the Application in broad accordance with the draft form as appended at Schedule 2 as may be amended by any non material amendment

"Public Realm Contribution" the sum of £468,000 00 (four hundred and sixty eight thousand pounds) Indexed Linked to be paid in accordance with the provisions of Policy OB6 of the SPD and to be directed towards the delivery of public realm works to King Street and Queen Street, Blackfriars including works which will improve access to both streets

"Regulations" the Community Infrastructure Levy Regulations 2010 as amended

"Residential Unit" means a residential unit constructed as part of the Development

"Retail Price Index" twelve (12) month percentage change in the All Items Retail Price Index published by the Office for National Statistics Centre and in the Monthly Digest of Statistics (or contained in any official publication substituted therefor) or such other index as may from time to time be published in substitution therefor

"Site" the property described in Schedule 1 and shown for the purposes of identification only edged red on the Plan

"SPD" the City of Salford Council's Supplementary Planning Document entitled "Planning Obligations" (adopted 18 June 2015)

"Transport Contribution" the sum of six thousand seven hundred pounds (£6,700 00) Indexed Linked to be paid in accordance with the provisions of Policy OB5 of the SPD and to be directed towards the cost of a scheme to provide bus/ Metrolink travel passes (or equivalent) and/or bicycle coupons for residents of the Development and will include any associated marketing material for promotion of the scheme

"UDP" the City of Salford Unitary Development Plan 2004-2016 (adopted 21 June 2006)

"Working Day" means any day except Saturday Sunday or a bank holiday and reference to "Working Days" shall be construed accordingly

1 2 The Clause headings do not affect this interpretation

1 3 Unless otherwise indicated, references to Clauses and Schedules are to Clauses of and Schedules to this Agreement and references in a Schedule to a Part or Paragraph are to a Part or Paragraph of that Schedule

1 4 References to any statute or statutory provision include reference to

1 4 1 all Acts of Parliament and all other legislation having legal effect in the United Kingdom as directly or indirectly amended, consolidated, extended, replaced or re-enacted by any subsequent legislation, and

1 4 2 any orders, regulations, instruments or other subordinate legislation made under that statute or statutory provision

1 5 Except for the provisions of Clause 9 references to the Site include any part of it

1 6 References to any party in this Agreement include the successors in title of that party In addition, references to the Council include any successor local planning authority exercising planning powers under the Act and any successor local highway authority exercising powers under the Highways Act 1980

1 7 "Including" means "including, without limitation"

1 8 Any covenant by the Owners or the Council not to do any act or thing includes a covenant not to permit or allow the doing of that act or thing

1 9 If any provision is held to be illegal, invalid or unenforceable, the legality, validity and enforceability of the remainder of this Agreement is to be unaffected

1 10 Words importing the singular meaning where the context so admits include the plural meaning and vice versa

1 11 Words of the masculine gender include the feminine and neuter genders and words denoting actual persons include companies, corporations and firms and all such words shall be construed interchangeable in that manner

1 12 Where two or more people form a party to this Agreement, the obligations they undertake may be enforced against them all jointly or against each of them individually

2. PLANNING OBLIGATION

This Agreement is made pursuant to section 106 of the Act, section 111 of the Local Government Act 1972, section 1 of the Localism Act 2011 and all other enabling legislation and is a planning obligation for the purposes of section 106 of the Act, with the intent that covenants hereinafter contained shall be enforceable by the Council acting under the powers contained in section 106 or such other enabling powers against the Owners

3. CONDITION PRECEDENT

This Agreement is conditional upon Commencement of Development save for the provisions of Clauses 9, 11, 15, 17 and 18 which shall have immediate effect

4. CONDITION SUBSEQUENT

If the Planning Permission for the Development has not been implemented by the carrying out of a material operation in accordance with the provisions of sections 56, 91 and 93 of the Act or is revoked

or modified in whole or in part (other than in approval of an application by or on behalf of either of the Owners) or quashed or declared unlawful as a result of legal proceedings then this Agreement shall absolutely determine and become null and void but without prejudice to the rights of either party against the other in respect of any antecedent breach

If the Council agrees pursuant to an application under section 73 of the Act to any variation or release of any condition contained in the Planning Permission or if any such condition is varied or released following an appeal under section 78 of the Act the covenants or provisions of this Agreement shall be deemed to bind the varied permission and to apply in equal terms to the new planning permission save where the Council in their determination of such an application for the new planning permission indicate that consequential amendments are required to this Agreement to reflect the impact of the section 73 application and in such circumstances a separate deed pursuant to section 106 of the Act will be required to secure relevant planning obligations relating to the new planning permission

5. THE OWNERS' COVENANTS

The Owners on behalf of themselves and subject to clause 19 any person deriving title to any part of the Site from the Owners hereafter hereby covenant with the Council so as to bind the Site to fully observe and perform the obligations on their part contained in this Agreement including those obligations set out in Schedule 3 and hereby agree that the Site shall be permanently subject to the obligations, restrictions and provisions specified herein, such obligations being planning obligations for the purpose of section 106 of the Act

6. THE COUNCIL'S COVENANTS

The Council hereby covenants with the Owners to observe and perform the obligations on its part in this Agreement including those obligations set out in the Schedule 4

7. DISPUTE RESOLUTION

7 1 In the event of any dispute arising in connection with any of the terms of this Agreement other than a dispute involving the construction or interpretation of the terms of this Agreement or the enforcement of any decision pursuant to this Clause, the same shall unless the Council and the Owners otherwise agree be referred to an Expert to be appointed by agreement between the Council and the Owners

7 2 If the Council and the Owners are unable to agree on the appointment of an Expert within thirty (30) days of one party serving notice on the other calling for the appointment of an Expert, then an Expert shall be appointed on the application of either party to the President for the time being of the Royal Town Planning Institute

7 3 Any reference of a dispute to an Expert shall if the parties are agreed in writing be deemed to be a reference to an expert (and not to an arbitrator) whose decision shall be final and binding (save for manifest error) but shall otherwise be deemed to be a reference to an arbitrator pursuant to the Arbitration Act 1996 and any statutory amendment variation substitution or re-enactment thereof

7 4 Any party to this Agreement shall be entitled to submit to the Expert representations and cross-representations with such supporting evidence as they shall respectively consider necessary and the Expert shall have regard thereto in making his decision which shall be delivered in writing The reference of any dispute shall include authority to determine in what manner all the costs of the referral shall be paid

8. WAIVER

No waiver (whether expressed or implied) by the Council of any breach or default in performing or observing any of the covenants terms or conditions of this Agreement shall constitute a continuing waiver and no such waiver shall prevent the Council from enforcing any of the relevant terms or conditions or from acting upon any subsequent breach or default

9. CHANGE IN OWNERSHIP & LIABILITY

9 1 The Owners agree with the Council with the exception of a transfer of an individual Residential Unit to give the Council written notice of any change in ownership of any of their interest in the Site occurring before all the obligations under this Agreement have been discharged such notice to give details of the transferee's full name and registered office (if a company or usual address if not) together with (unless the purchase relates to the entirety of the Site) the area of the Site or unit of occupation purchased by reference to a plan

9 2 No person shall be liable for any breach, non performance and non observance of the covenants, obligations and restrictions contained in this Agreement after it shall have parted with its entire interest in the Site (or that part of the Site to which the breach relates) but without prejudice to liability for any subsisting breach arising prior to parting with such interest nor shall this hinder or preclude the Council's rights as the Local Planning Authority to require that the breach, non performance or non observance be remedied after that person has parted with its interest in the Site

10. COUNCIL'S CONSENT OR APPROVAL

Where in this Agreement the consent, agreement or approval of the Council is required to be given by the Council, the Council confirms that such consent, agreement or approval shall not be unreasonably withheld or delayed provided that this shall not fetter the proper discretion of the Council

11. LOCAL LAND CHARGE AND LAND REGISTRY ENTRY

11 1 This Agreement is a Local Land Charge and shall be registered as such by the Council

11 2 For the purpose of noting this Agreement on the titles of the Owners registered under the Title Numbers GM315075 and GM787675 at the Land Registry the Owners will on the date hereof provide the Council with completed Form AN1 (or any replacement of this form) together with either a cheque made payable to the Land Registry to cover the requisite fee or alternatively with the Owners' solicitor's completed Land Registry account key number details inserted in the form The Council will arrange for the AN1 (or any replacement of this form) to be registered at the Land Registry and the Owners will supply the Council with

a copy of the amended register as soon as reasonably practicable following their receipt by the Owners from the Land Registry The Council will upon receipt of a written request of the Owners or its successors in title, at any time after the obligations set out herein have been fulfilled in their entirety, issue written confirmation thereon and thereafter cancel all related entries in the register of local land charges

11 3 The costs of registration and cancellation pursuant to clauses 11 2 above shall be met by the Owners if requested by the Council

12. NON-PROHIBITION ON DEVELOPMENT

Nothing in this Agreement shall prohibit or limit the right to develop any part of the Site in accordance with a planning permission (other than the Planning Permission) granted (whether or not on appeal) after the date of this Agreement

13. THE CONTRACTS ACT

Save as provided in respect of the successors in title to the Site or any successor to the relevant statutory functions of the Council this Agreement shall not be enforceable by any third party pursuant to the Contracts (Rights of Third Parties) Act 1999 and no third party shall acquire any benefit rights or claims whatsoever pursuant thereto

14. COMMUNICATION

14 1 Any notice or document to be served on or sent pursuant to this Agreement shall either be delivered personally or sent by recorded delivery service

14 1 1 to the Council and addressed to the Director at the Council's address first above written,

14 1 2 to the Owners at the address of their registered offices

15. FEES

15 1 The Owners shall prior to completion of the Agreement pay to the Council its legal fees reasonably and properly incurred in preparation of the Agreement,

15 2 Receipt by the Council of the payment of such sum shall not create any lawyer-client type contractual relationship between the Council and the Owners nor absolve the Owners from any liability or obligation imposed upon them by the terms of this Agreement or by statute or at common law

16. INTEREST

If any payment due under this Agreement is paid late Interest will be payable from the date payment is due to the date that payment is received

17. JURISDICTION

This Agreement is governed by and interpreted in accordance with the law of England

18. COMPLETION

The provisions of this Agreement (other than this clause which shall be of immediate effect) shall be of no effect until this Agreement has been dated

19. GENERAL

The obligations contained in this Agreement shall not be binding on or enforceable against

Any statutory undertaker or other utility supplier in relation to any part or parts of the Site acquired by them for the construction or installation of any structure or other apparatus (including without limitation and without prejudice to the generality of the foregoing electricity substations poles stays gas governor stations pumping stations or balancing ponds) required for the connection and supply of utility services

Any individual owners and occupiers of the Residential Units and their individual mortgages and chargees

EXECUTED as a deed by the parties on the day and year first hereinbefore appearing

SCHEDULE 1

The Site

Land and buildings at 28 King Street and 49 – 51 Queen Street, Blackfriars, Salford, M3 7DG shown for the purposes of identification edged red on the Plan

PROPOSED ROOF FLOOR PLAN



THE Common Seal of THE CITY OF SALFORD was affixed in the Presence of:

AUTHORISED SIGNATORY

N

10 METRES

FOR PLANNING

CLIENT OSA

PROJECT KING ST APARTMENTS

ADDRESS 28 KING ST SALFORD, M3 7DG

DRAWING TITLE BLOCK PLAN

SCALE: 1:1000 A1 | DATE

DRAWING NO: A206_P_002

OLLIER SMURTHWAITE ARCHITECTS
106 Albert Mill, 10 Hulme Hall Road, Manchester, M15 4LY
T 0161 883 0838
F 0161 883 0939
E mail@ollersmurthwaite.com

SCHEDULE 2

Draft Planning Permission for the Application

THE COUNCIL OF THE CITY OF SALFORD
CIVIC CENTRE
CHORLEY ROAD
SWINTON, M27 5BW

TOWN AND COUNTRY PLANNING ACT 1990

DECISION NOTICE : GRANT

PLANNING PERMISSION 18/72242/FUL

Date of Decision: 23 January 2019 SIGNED

Date of Issue: On behalf of the Council

Applicant:

c/o Mr Tom Flanagan
Paul Butler Associates
31 Blackfriars Road
Salford
M3 7AQ
United Kingdom

Part 1 – Particulars of Application: Date of Application: 2 August 2018

Location of development:
28 King Street And 49-51 Queen Street
Blackfriars
Salford
M3a7DG
Particulars of development:
Demolition of existing and former light industrial / commercial units, and the construction of a residential-led mixed-use development. Erection off a building ranging from 7-14 storey high comprising 104 residential apartments (C3 use) with ancillary communal spaces, a commercial unit (A1, A2, A3, B1, D1), together with associated parking and amenity space.

Part 2 – Particulars of Decision:

The Council of the City of Salford hereby gives notice in pursuance of the provisions of the Town and Country Planning Act 1990 that permission has been granted for the carrying out of the development referred to in Part 1 hereof in accordance with the application and plans submitted subject to the following condition(s):

1. The development hereby permitted shall be begun no later than three years beginning with the date of this permission.

   Reason: Required to be imposed by Section 91 of the Town and Country Planning Act 1990 (as amended).

2. The development hereby permitted shall be carried out in accordance with the following plans:

   - Dwg. No. A296_P_002 entitled 'Block plan' prepared by Ollier Smurthwaite Architects;
   - Dwg. No. A296_P_117, Revision C entitled 'Ground floor plan' prepared by Ollier Smurthwaite Architects;

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- Dwg. No. A296_P_1tl8 entitled 'First floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_119 entitled 'Second floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_120 entitled 'Third floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_121 entitled 'Fourth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_122 entitled 'Fifth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_123 entitled 'Sixth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_124 entitled 'Seventh floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_125 entitled 'Eighth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_126 entitled 'Ninth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_127 entitled 'Tenth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_128 entitled 'Eleventh floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_129 entitled 'Twelfth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_130 entitled 'Thirteenth floor plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_131 entitled 'Roof plan' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_200, Revision B entitled 'South elevation'prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_201, Revision A entitled 'North elevation' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_202 entitled 'East elevation' prepared by Ollier Smurthwaite Architects;
- Dwg. No. A296_P_203 entitled 'West elevation' prepared by Ollier Smurthwaite Architects;

Reason: For the avoidance of doubt and in the interests of proper planning.

3. Notwithstanding the details shown on the approvedtplans, the development hereby permitted shall not be occupied until full details of both hard and soft landscape works have been submitted to and approved in writing by the Local Planning Authority. The details shall include:

- All hard surface finishes, including permeable paving;
- Planting plans, specifications and schedules (including plant sizes, species and numbers/densities) and a scheme detailing the timing/phasing of all landscapetworks; and
- Details of all raised planters, including their volumes. These planers shall be large enough to support appropriately sized trees/vegetation.

All landscaping works shall be carried out in accordance with the approved scheme for timing/phasing or within 18 months of the first occupation of the development, whichever is the later.

All trees or shrubs planted in accordance with this condition which are removed, uprooted, are destroyed, die or become severely damaged or become seriously diseased within five years of planting shall be replaced within the next planting season by trees or shrubs of similar size and species to those originally required to be planted unless the Local Planning Authority gives its consent in writing to any variation.

Reason: To ensure that the site is satisfactorily landscaped having regard to its location and the nature of the development in accordance with Policies DES1 and DES9 of the Salford Unitary Development Plan and the National Planning Policy Framework.

4. Prior to the commencement of the development hereby permitted (except for demolition and enabling works) a Phase 2 Site Investigation report shall be submitted to and approved in writing by the Local Planning Authority. This investigation shall address the nature, degree and extent of any contaminated materials on site and identify any assess risks to receptors, focusing primarily on risks to human health and the wider environment.

Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: Works on site have the potential to liberate contaminated materials and the nature of any such materials must first be understood prior to the commencement of development.

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5. Should the Phase 2 assessment required by Condition 4 identify any unacceptable risks to receptors, prior to above ground works commencing the applicant shall submit to and have approved in writing by the Local Planning Authority a contaminated land remediation strategy. This strategy shall be prepared by a suitably competent person(s) and the development shall thereafter be carried out in complete accordance with the strategy or any variations thereto, as may be agreed in writing by the Local Planning Authority.

   Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

6. Pursuant to Condition 4 and prior to the first use or occupation of the development hereby permitted, a verification plan shall be submitted to and agreed in writing by the Local Planning Authority. This plan shall detail the evidence, data and information that will be collected to demonstrate (by way of a future verification report) that the works set out in the remediation strategy required by Condition 6 have been completed. The plan shall detail any requirements for the long-term monitoring of pollutant linkages, maintenance and contingency arrangement.

   Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

7. Pursuant to Condition 6 and prior to the first use or occupation of the development hereby permitted, a Verification Report shall be submitted to and approved in writing by the Local Planning Authority. This report shall validate that all required remedial works were completed in accordance with those agreed by the Local Planning Authority.

   Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

8. No development shall take place until the applicant or their agents or successors in title have secured the implementation of a programme of archaeological works. The works are to be undertaken in accordance with a Written Scheme of Investigation (WSI) submitted to and approved in writing by the Local Planning Authority. This WSI shall include:

1. A phased programme and methodology of investigation and recording, including:
a. A level 2 historic building survey;
b. An evaluation of below ground archaeological remains; and
c. Where warranted by the evaluation, targeted archaeological excavation.

2. A programme of post-investigation assessment, including:
a. An analysis of site investigation records and finds; and
b. The production of a report detailing the significance of the archaeological and historical interests represented.

3. The deposition of the final report with the Greater Manchester Historic Environment Record;
4. An agreed scheme for disseminating the results to local and wider communities;
5. Archive deposition of the report and records of the site investigation;
6. Nomination of a competent person(s)/organisation to undertake the works set out within the approved WSI.

   Reason: In accordance with the provisions of Retained Policy CH8 of the Salford Unitary Development Plan and the National Planning Policy Framework, Paragraph 199 to record and advance the understanding of any heritage assets impacted by the development and to make information about the archaeological heritage interests of the site publically accessible.

   Reason for pre-commencement condition: To ensure appropriate measures are in place prior to the commencement of development to safeguard any archaeological assets that may be found.

9. No development shall take place, including demolition or excavation works, until a Construction Method Statement has been submitted to and approved in writing by the Local Planning Authority.

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The approved Statement shall be adhered to throughout the construction period. The Statement shall include:

(i) the times of construction activities on site which, unless agreed otherwise as part of the approved Statement, shall be limited to between 9am-6pm Monday to Friday and 9am-12 noon on Saturdays only (no working on Sundays or Bank Holidays). Quieter activities carried out inside the building such as electrical works, plumbing and plastering may take place outside of agreed working times so long as they do not result in significant disturbance to neighbouring occupiers;
(ii) details of all construction activities which generate noise or significant vibration. These details shall include the type of activity and an anticipated timetable of works. This timetable shall be drafted with regard to the provisions of (i) above;
(iii) a comprehensive Traffic Management Strategy ensuring on and off-site disruption is kept to a minimum and ensuring no increase in risk to pedestrians and road users during the construction period;
(iv) the spaces for and management of the parking of site operatives and visitors vehicles;
(v) the storage and management of plant and materials (including loading and unloading activities);
(vi) the erection and maintenance of security hoardings including decorative displays and facilities for public viewing, where appropriate;
(vii) measures to prevent the deposition of dirt on the public highway;
(viii) measures to control the emission of dust and dirt during excavation and construction;
(ix) a scheme for recycling/disposing of waste resulting from demolition/construction works;
(x) measures to minimise disturbance to any neighbouring occupiers from noise and vibration, including from any piling activity;
(xi) measures to prevent the pollution of watercourses; and
(xii) a community engagement strategy which explains how local neighbours will be kept updated on the construction process and key milestones and how they can report to the site manager or other appropriate representative of the developer instances of unneighbourly behaviour from construction operatives. The strategy shall also detail the steps that will be taken when unneighbourly behaviour has been reported. A log of all reported instances shall be kept on record and made available for inspection by the Local Planning Authority upon request.

Reason: In the interests of the amenity of neighbours in accordance with Retained Policies DES7 and EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: The manner in which the site and surrounding public highways will be managed during the construction process must be understood prior to the commencement of building works on site.

10. No development shall take place, including demolition or excavation works, until a scheme facilitating a local liaison committee has been submitted to and agreed in writing by the Local Planning Authority in consultation with the Assistant Director, Planning and Housing. The purpose of this scheme is to minimise disruption to neighbouring businesses during the demolition and construction phases. The scheme shall include a list of committee members, suggested venues for meetings, the frequency of meetings and mechanisms to implement and review actions. The scheme shall be fully implemented as required throughout the demolition and construction phases and the committee shall meet as long as is requested by any member.

Reason: To safeguard existing surrounding businesses during the demolition and construction phases so as to not impact adversely upon their operations in accordance with the National Planning Policy Framework.

Reason for pre-commencement condition: The development site is in close proximity to sensitive business premises and prior to the commencement of demolition works, measures to minimise impacts to these businesses must first be agreed.

11. Prior to the first occupation of the development hereby permitted the applicant shall submit to and have approved in writing by the Local Planning Authority a Refuse Management Scheme (RMS). This RMS shall detail all waste collection arrangements and confirm that no bins will be left on the public highway at any time. The agreed measures shall be implemented prior to the first occupation of the development and maintained thereafter.

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Reason: To ensure appropriate refuse collection arrangements and the safety of pedestrians and other road users in accordance with Retained Policy A8 of the Salford Unitary Development Plan and the National Planning Policy Framework.

12. Notwithstanding any description of materials in the application, no above ground construction works shall take place until samples or full details of materials to be used externally have been submitted to and approved in writing by the Local Planning Authority in conslutation with the Chair of the Planning Panel. This includes samples/details of all facing bricks, mortar(s), window frames, glazing and balustrades. Only the materials so approved shall be used in accordance with any terms of such approval.

Reason: In order to ensure a satisfactory appearance and in the interests of visual amenity in accordance with Retained Policy DES1 of the Salford Unitary Development Plan and the National Planning Policy Framework.

13. Piling or any other foundation works requiring penetrative methods are not permitted other than with the express written consent of the Local Planning Authority. This consent may only be given for those parts of the site where it is clearly demonstrated there would be no resultant unacceptable risks to groundwaters. The development shall be carried out in accordance with any such written consent.

Reason: To ensure that piling activities do not impact upon ground water quality in accordance with the provisions of Retained Policy EN18 of the Salford Unitary Development Plan and the National Planning Policy Framework.

14. No infiltration of surface water o the ground is permitted other than with the express written consent of the Local Planning Authority. The development shall be carried out in accordance with any such written consent.

Reason: To ensure that future residents are not put at risk from, or adversely affected by, water pollution caused by the mobilisation of contaminants in accordance with the provisions of Retained Policy EN18 of the Salford Unitary Development Plan and the National Planning Policy Framework.

15. No development except for site clearance and remediation works shall take place until a strategy for surface water drainage using source control sustainable drainage methods and which includes details of how water quality will be improved and how existing surface water discharge rates reduced has been submitted to and approved in writing by the Local Planning Authority. The approved strategy shall be implemented prior to the first occupation or use of the development hereby approved unless alternative timescales have been agreed in writing by the Local Planning Authority.

Reason: To reduce the risk of flooding in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

16. Prior to the first occupation of the building hereby approved, a sustainable drainage management and maintenance plan for the lifetime of the development shall be submitted to and agreed in writing by the Local Planning Authority. This plan shall include as a minimum:

a. Arrangements for adoption by an appropriate body or statutory undertaker or management and maintenance by a resident's management company; and
b. Arrangements for inspection and on-going maintenance of all elements of the drainage system to ensure its efficient operation throughout its lifetime.

The development shall subsequently be completed, maintained and managed in accordance with the approved plans.

Reason: To ensure that appropriate management and maintenance arrangements are in place to prevent flood impacts in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

DRAFT

17. The surface water discharge rate shall not exceed 50% of the existing discharge rate or greenfield equivalent, whichever is the greater. This corresponds to a maximum rate of 5.9l/s

Reason: To reduce the risk of flooding in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

18. All balconies and terraces shall be under-drained and shall not discharge directly onto the ground.

Reason: To manage the risk of flooding in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

19. Foul and surface water shall be drained on separate systems.

Reason: To secure proper drainage and to manage the risk of flooding in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

20. The development hereby approved shall not be brought into first use or occupation until such time as a Full Travel Plan has been submitted to, and approved in writing by, the Local Planning Authority. This Plan shall include the measures to be implemented to encourage the use of more sustainable modes of transport with reference to the sustainable transport fund established by this permission. Within six months of the development hereby approved being brought into first use or occupation, a further updated Travel Plan shall be submitted to the Local Planning Authority for approval. This Travel Plan shall include updated Plan budget/targets, action plan, Plan Coordinator details, updated Travel Pack information and details of on-going incentives (such as any further weekly/monthly public transport tickets and cycletdiscounts). This updated Plan shall be implemented as agreed and reviewed in accordance with the timetable embodied therein.

Reason: To ensure that the development makes best use of available sustainable transport options and does not impact upon the local highway network in accordance with Retained Policy A8 of the Salford Unitary Development Plan and the National Planning Policy Framework.

21. Prior to the first occupation of the development hereby approved, the applicant shall submit to and have approved in writing by the Local Planning Authority full construction details of the dropped kerb and tactile paving to be provided at the King Street and Queen Street intersection.

The agreed details shall be implemented prior to the first occupation of the development hereby approved and maintained thereafter.

Reason: To ensure the appropriate configuration and finish of the highway in accordance with Retained Policy A8 of the Salford Unitary Development Plan and the National Planning Policy Framework.

22. The glazing of all habitable room windows shall achieve a minimum sound reduction index of 30 dB Rw -CTR. A habitable room is defined here as all living rooms, dining rooms or bedrooms.

Reason: To safeguard the amenity of future residents of the building in accordance with the provisions of Retained Policies and EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Statement of conformity with Article 35 of The Town and Country Planning (Development Management Procedure) (England) Order 2015

1.The development hereby approved shall be constructed in accordance with Approved Document L of the Building Regulations.

2.The applicant is to enter into a S50 legal agreement with the Local Highways Authority and provide the funding necessary to facilitate all off-site highways works. The agreement shall also include the relocation

DRAFT

of any street lighting, drainage or other utility services affected by the development. The permission of the relevant utility providers must be obtained prior to the commencement of any works.

3.A Dilapidation Survey shall be undertaken following the completion of the development to ensure the adopted footway and carriageway has not been damaged. The use of any non-standard materials will require a service level agreement with the Local Highways Authority. This will include a 30 year commuted sum for maintenance.

4.The applicant is to enter into a S171 legal agreement with the Local Highway Authority and Greater Manchester Roads Activities Permit Scheme (GMRAPS).

5. The applicant is reminded that under the Conservation of Habitats and Species Regulations 2010 (Amended 2012) it is an offence to disturb, harm or kill bats. If a bat is found during demolition all work should cease immediately and a suitably licensed bat worker employed to advise how best to safeguard the bat(s). Natural England should also be informed.

6.The applicant is reminded that, under the Wildlife and Countryside Act 1981 as amended, it is an offence to remove, damage or destroy the nest of a wild bird while the nest is in use or being built. Planning consent does not provide a defence against prosecution under this Act. If a bird's nest is encountered or suspected work should cease immediately and a suitably experienced ecologist employed to advise how best to safeguard the bird(s).

7.If, during any works on site, contamination is suspected or found or contamination is caused, the Local Planning Authority shall be notified immediately. Where required, a suitable risk assessment shall be carried out and/or any remedial action shall be carried out in accordance with an agreed process and within agreed timescales.

8.The applicant is advised that it is his/her responsibility to adhere to the regulations of Part 2A of the Environmental Protection Act 1990, the National Planning Policy Framework (NPPF) and the current Building Control Regulations with regards to contaminated land. Responsibility to ensure the safe development of land affected by contamination rests primarily with the developer.

9. With respect to gas protection measures the applicant's attention is drawn to BRE 414 (Protection Measures for Housing on Gas-Contaminated Sites). In addition, the requirements of BS8845:2015 (Code of Practice for the design of protective measures for methane and carbon dioxide ground gases for new buildings) should be followed for installation and the verification requirements of CIRIA C735 (Good Practice on the Testing and Verification of Protection Systems for Buildings Against Hazardous Ground Gasses) will need to be submitted.

10.Verification of gas protection systems needs to be undertaken during the construction process, or the applicant may not be able to discharge the related conditions. This can lead to issues with property searches and/or mortgages at a later time.

11.The physical security measures noted in Section 4.0 of the Crime Impact Statement submitted in support of the application (ref.: URN: 2017/0866/CIS/01, Version A, dated 1 August 2018) should be incorporated into the development.

12.Please note the advice of United Utilities as set out in its consultation response dated 11 September 2018 and available for viewing on the Council's electronic case file.

Useful contacts -

Dilapidation Survey:

The developer shall contact John Horrocks to arrange a full dilapidation/condition survey of all adopted highways surrounding the site prior to works commencing. Tel: 0161 603 4046.

Highway Permits/Licensing:

DRAFT

Applications for all forms of highway permits/licenses shall be made in advance of any works being undertaken on the adopted highway. Note: NO boundary fencing shall be erected or positioned on any part of the adopted highway without first seeking the relevant permits/licenses from the Local Highway Authority. Tel: 0161a603a4046

General Highway Information:

Requests for general information regarding the adopted highway network shall be directed to the Local Highway Authority (John Horrocks, 0161 603 4046).
Notes to Applicant:

1. This permission only authorises the carrying out of development which is entirely in accordance with the approved plans and other details submitted. In the event of any intended amendments to these details and plans, including the siting of the development in relation to site boundaries or adjacent properties, the developer must first contact the Development Management Section before any development is commenced for advice regarding the necessity to obtain further permission.

2. This Notice does not constitute an approval under the Building Regulations 2000 and you should contact the Local Authority Building Control Section for further information. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

3. Please note that any new building(s) or any existing building(s) being converted into separate dwellings (including apartments etc.) or businesses will legally require an official postal address. This is enforceable under the Public Health Act 1925. The Developer should contactaSalford City Council who will process the postal addressing. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

4. This Notice does not constitute an approval of the highway layout for adoption in accordance with the Highways Act 1980 and you should contact the Local Authority Engineering Design Section for further information regarding the requirements for highway adoption. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

Salford CityaCouncil would like to encourage all residents and businesses to help make the City a better place to live and work by transforming hard grey areas into living, planted places that enrich lives. The Royal Horticultural Society is running a campaign to "Green Grey Britain" which the City Council fully supports. We are asking all applicants to view the RHS website at www.rhs.org.uk and to pledge support for the campaign through the implementation of landscaping schemes/proposals which form part of planning permissions granted by the City Council.

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse planning permission for the proposed development or to grant it subject to conditions, then you can appeal to the First Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice except where one of the following applies:
    - If this is a decision to refuse planning permission for which an enforcement notice has been served for the same or substantially the same land and development either within 2 years prior to the date on which the application was submitted or before the application was determined, if you want to appeal against your local authority's decision then you must do so within 28 days of the date of this notice; or
    - If this is a decision to refuse planning permission and an enforcement notice is served for the same or substantially the same land and development after the date of this notice, if you want to appeal against your local authority's decision then you must do so within 28 days from the date the enforcement notice is served, unless the effect would be to extend

the period beyond the usual time limit for cases not involving an enforcement notice (i.e. 6 months of the date of this notice).

- Appeals must be made using a form which you can get from the Planning Inspectorate at Temple Quay House, 2 The Square, Temple Quay, Bristol, BSI 6PN or online at www.planningportal.gov.uk/pcs.
- The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.
- In practice, the Secretary of State does not refuse to consider appeals solely because the local planning authority based their decision on a direction given by him.

Purchase notices

- If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.
- In these circumstances, the owner may serve a purchase notice on the Council in whose area the land is situated. This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act

Compensation

In certain circumstances compensation may be claimed from the Local Planning Authority if permission is refused or granted subject to conditions by the Secretary of State on appeal or on reference of the application to him/her.

These circumstances are set out in section 114 and related provisions of the Town and Country Planning Act 1990.

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SCHEDULE 3

The Owners' General Covenants

The Owners hereby covenant with the Council as follows

1 To notify the Council in writing within 7 (seven) Working Days of Commencement of Development,

2 To pay to the Council the Contributions Indexed Linked within 7 (seven) Working Days of Commencement of Development as follows

a 50% prior to the Occupation of the first Residential Unit, and

b 50% prior to the Occupation of 50% of the Residential Units

SCHEDULE 4

The Council's Covenants

The Council hereby covenants with the Owners as follows

1 To use the Contributions received for the sole purpose of the projects identified in this Agreement and for no other purpose

2 At the written request of the Owners to provide written confirmation of the discharge of the obligations contained in this Agreement when satisfied that such obligations have been performed

3 That none of the projects or infrastructure items that the Contributions are funding or contributing to have been funded or contributed to by more than four other s 106 Agreements since 6 April 2010 and that the Council has reviewed its records and is satisfied that the Contributions are is not in breach of the requirements of Regulation 123 of the Regulations

4 In the event that any part of the Contributions paid to the Council have not been spent by the Council within 10 years of the date on which the Contributions were paid to the Council the Council shall on the written request of the Owners repay to the party/person which paid the Contributions such unspent balance (excluding any such sums in respect of which though not yet expended the Council has contractually committed to expend) together with interest on that balance calculated from the date of payment to the Council to the date of repayment

5 The Council shall provide written details of any expenditure incurred by the Council using the Contributions within 15 Working Days of a written request to do so from the party/person who paid those Contributions to the Council

6 To issue the Planning Permission within 2 Working Days of the date hereof

THE COMMON SEAL of **THE COUNTY OF THE CITY OF SALFORD**

was affixed in the presence of

AUTHORISED SIGNATORY

Signature

Number in Seal Book 8096

Name (in block capitals)

M. GARRITTERS-WATT

EXECUTED AS A DEED by **BRADLEY MANOR LIMITED**

DIRECTOR

Signature

Name (in block capitals)

ALASTER SMARTHWAITE

IN THE PRESENCE OF:

Signature

Name (in block capitals) MICHELLE O'NEILL

Address 94 GEORGIA AVE
MANCHESTER
M20 1LX

EXECUTED AS A DEED by **DYRHAM PARK LIMITED**

DIRECTOR

Signature 

Name (in block capitals)

ALASTER SMITHWHITE

IN THE PRESENCE OF:

Signature 

Name (in block capitals) MICHELLE O'NEILL

Address 94 GEORGIA AVE
MANCHESTER
M20 1LX